

Court No. - 21

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Petitioner Counsel :- Ajit Kumar

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

Put-up as fresh, if possible, on 21.12.2012 before another Bench of which one of us (S. P. Mehrotra, J.) is not a member after obtaining nomination from the Hon'ble The Acting Chief Justice.

Order Date :- 19.12.2012

A. Pt. Singh

Court No. - 37

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Petitioner Counsel :- Ajit Kumar

Respondent Counsel :- Nripendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner and Sri A.K.Mehrotra, learned counsel appearing for respondents No.1,2 and 3.

Learned counsel for the petitioner submits that by the order dated 3.12.2012, now the petitioner has been asked to deposit heavy amount of Rs.55,33,268/- which according to the letter itself is due to the computer mistake that the petitioner was given incorrect bills earlier.

Learned counsel for the respondents has pointed out that the petitioner himself has written a letter that he is ready to deposit the amount in sixty installments.

Learned counsel for the respondents as well as the petitioner may seek further instruction in the matter.

Subject to the petitioner's deposit, an amount of Rupees five lakh before 15.1.2013, no further action shall be taken in pursuance of the letter dated 3.12.2012.

Put up on 16.1.2013 in the additional cause list showing the name of Sri A.K.Mehrotra as counsel for the respondents.

Order Date :- 21.12.2012

VPC

Court No. - 37

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Petitioner Counsel :- Ajit Kumar

Respondent Counsel :- Nripendra Mishra,A.K. Mishra,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

As prayed by Sri Ajit Kumar, learned counsel for the petitioner, list on 4th February 2013.

Sri A.K.Mehrotra, learned counsel has appeared on behalf of the respondents .

When the case is listed next, the name of Sri A.K.Mehrotra be shown as counsel for the respondents.

Order Date :- 16.1.2013

SKM

Court No. - 37

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar

Counsel for Respondent :- Nripendra Mishra,A.K.
Mishra,A.K.Mehrotra,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Sri Ajit Kumar, learned counsel for the petitioner has sent his illness slip today.

The case is passed over for the day.

List in the next cause list.

Order Date :- 3.12.2013

Anand

Court No. - 38

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar

Counsel for Respondent :- Nripendra Mishra,A.K.

Mishra,A.K.Mehrotra,S.C.

Hon'ble Ran Vijai Singh,J.

Hon'ble Daya Shankar Tripathi,J.

Supplementary affidavit filed today is taken on record.

Miss Sujata Chaudhary, learned counsel for the petitioner prays for and is granted two weeks and no more time to file an amendment application.

As prayed, list after two weeks.

Order Date :- 21.11.2016

L.F./14

Court No. - 38

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar

Counsel for Respondent :- Nripendra Mishra,A.K.

Mishra,A.K.Mehrotra,S.C.

Hon'ble Ran Vijai Singh,J.

Hon'ble Daya Shankar Tripathi,J.

In the revised list, the case was dismissed for default. Before the order could be transcribed and signed, a mention has been made on behalf of the petitioner for passing over the case.

The case is being passed over for the day.

Order Date :- 8.12.2016

Ravi Prakash

Court No. - 38

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Ran Vijai Singh, J.

Hon'ble Vinod Kumar Srivastava-III, J.

Ms. Sujata Chaudhery holding brief of Shri M.K. Singh, learned counsel for the petitioner states that an amendment application was filed in the Registry on 5.12.2016 that is not on the record.

Office is directed to trace and place the same on the record.

List after two weeks.

In the meantime, learned counsel for the respondents may file counter affidavit to the amendment application.

Order Date :- 30.3.2017

Sumaira

Court No. - 29

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Ashok Kumar, J.

Heard learned counsel for the parties.

Amendment application allowed necessary amendment in the writ petition be carried out within a week. Two weeks' time is allowed to the respondents to file a counter affidavit to the amended paragraphs.

Two weeks' time is allowed to the learned counsel for the respondents to file counter affidavit.

List thereafter.

Order Date :- 23.8.2017

Israr

(Ashok Kumar, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Arvind Kumar Tripathi, J.

Hon'ble Siddharth, J.

Passed over on the illness slip of Mr. Nripendra Mishra, one of counsel for the respondent.

List in the next cause list.

Order Date :- 29.11.2017

A.K.Srivastava

Court No. - 38

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Ran Vijai Singh, J.

Hon'ble Mukhtar Ahmad, J.

Sri A.K. Mehrotra, learned counsel appearing for the respondent states that he may be granted two week's time to seek instruction. List this case in the week commencing 29th January, 2018. In the meantime instruction may be obtained.

Order Date :- 11.1.2018

samz

Court No. - 38

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Ran Vijai Singh, J.

Hon'ble Mukhtar Ahmad, J.

Sri A. K. Mehrotra, learned counsel for the petitioner has sent illness slip.

The case is being passed over for the day.

Order Date :- 29.1.2018

M.A.Ansari

Court No. - 35

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Bharati Sapru, J.

Hon'ble Saral Srivastava, J.

List is revised. Learned counsel for the petitioner is present but learned counsel for respondent is not present in court today.

Learned counsel for the petitioner will give a notice in writing to the learned counsel for the respondent that the matter will be taken in the next cause list with or without his aid. List in the next cause list.

Order Date :- 11.4.2018

rk

Court No. - 35

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar,Avnish Kumar Srivastava,Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra,A.K. Mishra,A.K.Mehrotra,S.C.

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Passed over on the request made on behalf of Sri A.K. Mehrotra, learned Counsel for the respondents.

Order Date :- 18.4.2018
S.P.

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

List is being revised. No one has put in appearance on behalf of the respondents

List this case peremptorily on 06.08.2018. However, it is made clear that on that date the case shall not be adjourned on any ground.

Learned counsel for the petitioner undertakes to inform this order to learned counsel for the private respondents in writing.

Order Date :- 26.7.2018

IrfanUddin

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

By order dated 26.7.2018, this court had passed the following order:

"List is being revised. No one has put in appearance on behalf of the respondents.

List this case peremptorily on 06.08.2018. However, it is made clear that on that date the case shall not be adjourned on any ground.

Learned counsel for the petitioner undertakes to inform this order to learned counsel for the private respondents in writing."

Despite aforesaid order, no counter affidavit has been filed by the electricity department. Now taking a lame excuse, Mr. Chandan

Agarwal states that Mr. A. K. Mehrotra is no more a counsel in the present case although he is continuing in the panel and he has been instructed to appear in the case on behalf of the electricity department. No reason has been disclosed as to why Mr. A. K. Mehrotra has been replaced by another counsel though he is still continuing in the panel. Today instead of arguing the matter by filing counter affidavit adjournment has been sought by Mr. Chandan Agarwal, whereas by order dated 27.6.2018 the matter was directed to be listed today peremptorily making it clear that the case shall not be adjourned on any ground .

In view of the above, the concerned Executive Engineer of the electricity department is directed to appear in person on the next date fixed to explain the position.

List this matter on 13.8.2018.

Order Date :- 6.8.2018

MLK

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

This matter was passed over on 2nd May, 2018 on the illness slip of Sri A.K. Mehrotra, learned counsel for the respondents. Thereafter the matter was listed again on 26.7.2018 but none had appeared on behalf of the respondents as such the Court had directed to list this matter peremptorily on 6.8.2018 making it very clear that on that date the case shall not be adjourned on any ground.

When the matter was taken up on 6.8.2018, despite specific order being passed by this Court on 26.7.2018, no counter affidavit was filed by the Electricity Department taking order of this Court dated 26.7.2018 too casually and carelessly. It was further stated by Sri Chandan Agarwal, who is now appearing for the Electricity Department that Sri A.K. Mehrotra Advocate has ceased to be counsel in the present case although there is nothing on record to show that Sri A.K. Mehrotra, Advocate, at any point of time, was disengaged from the case. This is admitted to the department that Sri A.K. Mehrotra continues on its panel.

This Court vide order dated 6.8.2018 passed the following orders:-

"By order dated 26.7.2018, this court had passed the following order:

"List is being revised. No one has put in appearance on behalf of the respondents.

List this case peremptorily on 06.08.2018. However, it is made clear that on that date the case shall not be adjourned on any ground.

Learned counsel for the petitioner undertakes to inform this order to learned counsel for the private respondents in writing."

Despite aforesaid order, no counter affidavit has been filed by the electricity department. Now taking a lame excuse, Mr. Chandan Agarwal

states that Mr. A. K. Mehrotra is no more a counsel in the present case although he is continuing in the panel and he has been instructed to appear in the case on behalf of the electricity department. No reason has been disclosed as to why Mr. A. K. Mehrotra has been replaced by another counsel though he is still continuing in the panel. Today instead of arguing the matter by filing counter affidavit adjournment has been sought by Mr. Chandan Agarwal, whereas by order dated 27.6.2018 the matter was directed to be listed today peremptorily making it clear that the case shall not be adjourned on any ground.

In view of the above, the concerned Executive Engineer of the electricity department is directed to appear in person on the next date fixed to explain the position.

List this matter on 13.8.2018."

In pursuance of the order dated 6.8.2018, no affidavit has been filed explaining as to why the counter affidavit was not filed in this Court on 6.8.2018 despite specific order passed. It appears that Electricity department is taking this Court as well as the matter too casually. Executive Engineer, Pramod Kumar Goel, who is present in person today, no plausible explanation is forthcoming at his end nor, any affidavit has been filed by him explaining the reason for non-compliance. It is a distressing feature and reprehensible. The callous, indifferent and casual attitude of the Electricity department writ large on the face of the record itself. Such conduct must be deprecated. Both public time and public money gets wasted if matter is adjourned but for the laxity on the part of contesting respondent. Hence we are constrained to pass the following order.

Counter affidavit sworn by Sri Saurabh Rai, Sub Division Officer, EDD, Loni-II, PVVNL, Ghaziabad filed today which is accepted subject to deposit of cost to the tune of Rs.2,00,000/- by Electricity Department and further warning is given to the Executive Engineer to ensure that orders of this Court should be complied with otherwise this Court will be compelled to take strict measures against the delinquent officers.

Let the matter be listed 24th August, 2018 to enable Executive Engineer-respondent no.1 to deposit the cost as mentioned hereinabove in the shape of bank draft in favour of the Registrar General, High Court of Judicature at Allahabad. Such amount shall be remitted to the Advocate Association of Allahabad High Court.

Order Date :- 13.8.2018

Atmesh

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K.Mehrotra,S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

In pursuance of the order dated 13.08.2018 passed by this Court, a Bank Draft to the tune of Rs.2,00,000/- (Two Lakh only) in favour of the Registrar General, High Court of Judicature at Allahabad has been deposited by Electricity Department through its Counsel Mr. Chandan Agarwal, is taken on record.

Office is directed to place the aforesaid Bank Draft before the Registrar General, High Court, Allahabad for remitting the said amount to the Advocate Association, High Court, Allahabad in terms of the earlier order dated 13.08.2018. It is made clear that the said amount shall be spent by the Advocate Association, High Court, Allahabad for the welfare of the lawyers.

A photo-stat copy of the said Bank Draft be kept on record.

In pursuance of the earlier order passed by this Court, Mr. Pramod Kumar Goel, Executive Engineer, Electricity Distribution Division, Loni-II, PVVNL, Ghaziabad has appeared in person before this Court and has filed his exemption application.

Considering the facts and circumstances of the case, the personal appearance of Mr. Pramod Kumar Goel, Executive Engineer, Electricity Distribution Division, Loni-II, PVVNL, Ghaziabad is hereby exempted. He need not appear before this Court on future dates unless otherwise directed by this Court.

List the matter on 5th September, 2018.

Order Date :- 24.8.2018/Arun

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar
Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K.
Mishra, A.K. Mehrotra, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

Rejoinder affidavit filed today on behalf of the petitioner is taken on record.

As prayed, list this matter after one week.

Order Date :- 5.9.2018

Atmesh

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

As prayed, list this case in the next cause list amongst the top ten cases.

Order Date :- 12.9.2018

IrfanUddin

Court No. - 32

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K.Mehrotra, S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by the learned counsel for the parties, list the matter on 8th October, 2018 amongst the top ten cases.

Order Date :- 19.9.2018

Arun

Court No. - 40

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Harsh Kumar, J.

This matter was pursued under the orders of the Court and an amount of Rs. 2 lakhs was imposed as cost by the Court on account of the laxity shown on the part of the Electricity Department. However a counter affidavit was filed on 13th August, 2018 to which a rejoinder affidavit has also been filed.

Today learned counsel for the petitioner Mohit Kumar Singh has sent his illness slip.

List peremptorily in the next cause list.

Order Date :- 8.10.2018

M. ARIF

Court No. - 40

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries (P) Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Ors.

Counsel for Petitioner :- Ajit Kumar, Avnish Kumar Srivastava, Mohit Kumar Singh

Counsel for Respondent :- Nripendra Mishra, A.K. Mishra, A.K. Mehrotra, S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Harsh Kumar, J.

This petition challenges proceedings of recovery of electricity dues.

After the matter was heard at length and after having perused the record we find that the following interim order was granted by this Court on the statement given by the counsel as recorded in the order dated 21.12.2012 extracted hereinunder:-

"Heard learned counsel for the petitioner and Sri A.K.Mehrotra, learned counsel appearing for respondents No.1,2 and 3.

Learned counsel for the petitioner submits that by the order dated 3.12.2012, now the petitioner has been asked to deposit heavy amount of Rs.55,33,268/- which according to the letter itself is due to the computer mistake that the petitioner was given incorrect bills earlier.

Learned counsel for the respondents has pointed out that the petitioner himself has written a letter that he is ready to deposit the amount in sixty installments.

Learned counsel for the respondents as well as the petitioner may seek further instruction in the matter.

Subject to the petitioner's deposit, an amount of Rupees five lakh before 15.1.2013, no further action shall be taken in pursuance of the letter dated 3.12.2012.

Put up on 16.1.2013 in the additional cause list showing the name of Sri A.K.Mehrotra as counsel for the respondents."

The respondents came up with a counter affidavit and appended therewith the letter dated 05.12.2012 which is not disputed by the petitioner. In paragraph no. 5 of the said letter, the petitioner itself had requested for fixing 60 installments and for not charging interest on the demand raised.

The Executive Engineer concerned gave a reply on 13th December 2012 that on the request of the petitioner the

department is prepared to consider granting installments and it shall not charge any interest on the amount which is due.

The dispute between the parties as raised in this petition is very limited. This is a clear case where the bills that were raised for demand to the petitioner were admittedly defective, inasmuch as, the correct multiplier factor of 02 had been wrongly substituted by the 01. This resulted in almost payment of half of the entire amount which was payable by the petitioner. This fault came to be rectified, whereafter the bills were raised and it is in that response that the petitioner tendered the letter dated 05th December 2012.

After the writ petition had been entertained and the interim order had been passed, the petitioner moved an amendment application which was formally allowed. Learned counsel submits that with the allowing of the amendment application, the petitioner is raising a dispute about non realization of the said amount of the previous years between 2005 to 2012 on the ground of limitation as per Clause 6.15 of the U.P. Electricity Supply Code 2005.

Allowing of an amendment application does not amount to allowing of the prayer made by the petitioner.

In the background of the own offer of the petitioner that the petitioner was prepared to pay the entire amount due in installments, there is no occasion for this Court to consider the prayer for quashing of the proceedings of recovery.

The multiplier factor which had to be mentioned as 02 was incorrectly mentioned as 01 in the bills due to wrong feeding in the computer. This fact is admitted to the petitioner. Apart from this, the petitioner has stated that the bills between 17.08.12 to 14.09.2012 were paid under the multiplier of 02.

It is in this background that the present writ petition has been filed and the prayer made is for waiver of the amount on the above grounds.

Upon hearing learned counsel for the parties, learned counsel for the petitioner prays that the matter may be disposed off for a resolution for payment of the amount through appropriate installments.

We find that the respondents themselves through the Executive Engineer vide a letter dated 13.12.2012 had made this offer.

Consequently, we dispose of this writ petition with a direction to the Executive Engineer respondent no.1 to proceed to consider the said request of the petitioner in accordance with law in order to enable the petitioner to clear off the dues in view of what has been indicated hereinabove.

The writ petition stands disposed of with the aforesaid directions.

The proceedings for recovery of the amount will abide by any orders to be passed by the Executive Engineer who shall do the needful within six weeks' from the date of presentation of a certified copy of this order.

The amount of Rs. 5 lakhs which has already been deposited shall be adjusted accordingly.

Disposed of.

Order Date :- 22.10.2018

M. ARIF

Court No. - 21

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries P Ltd.

Respondent :- Executive Engineer Electricity Distribution Division And Ors.

Counsel for Petitioner :- Ajit Kumar,Avnish Kumar Srivastava,Mohit Kumar Singh,Sujata Choudhary

Counsel for Respondent :- Nripendra Mishra,A.K. Mishra,Chandan Agarwal,S.C.

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Harsh Kumar,J.

On the request of learned counsel for the petitioner, case is passed over for the day.

Order Date :- 22.2.2019

T. Sinha

Court No. - 21

Case :- WRIT - C No. - 66463 of 2012

Petitioner :- M/S Capital Polymers Industries P Ltd.

Respondent :- Executive Engineer Electricity Distribution Division And Ors.

Counsel for Petitioner :- Ajit Kumar,Avnish Kumar Srivastava,Mohit Kumar Singh,Sujata Choudhary

Counsel for Respondent :- Nripendra Mishra,A.K. Mishra,Chandan Agarwal,S.C.

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Harsh Kumar,J.

Order on Review Application No. 09 of 2018 :-

Heard Shri H.P.Dube, Senior Counsel assisted by Ms. Sujata Choudhary, on behalf of the petitioner and Shri Anshu Singhal, learned counsel holding brief of Shri Chandan Agarwal, on behalf of the respondents.

The petitioner has preferred this petition for issuance of a writ of Certiorari to quash the entire recovery proceedings initiated by the respondents against demand notice dated 03.12.2012 and has sought a direction upon the respondents to refund the amount with interest @ 12% per annum paid by the petitioner. This prayer has been added by the petitioner by way of an amendment previously.

Initially the writ petition was filed with a direction upon the respondents to permit the petitioner to make good payment of alleged arrears as disclosed in the bill annexed along with notice dated 03.12.2012 issued by the respondent no. 1.

In the Amendment Application the petitioner has raised some question of limitation and the amendment application has been allowed by this Court.

It is urged by the learned counsel for the petitioner that in the Amendment Application, the petitioner has challenged the demand notice amongst other ground under Section 6.15 of the U.P. Electricity Supply Code, 2005 a demand of arrear of more than two years cannot be recovered. It is also stated that the demand notice issued by the respondents earlier includes the dues which stand time barred.

Next submission made by the learned counsel for the petitioner is that this Court may grant liberty to the petitioner to raise this

issue before the appropriate authority.

Learned counsel for the respondents Shri Anshu Singhal has no objection to the said statement.

Accordingly, we modify the judgment and order dated 22.10.2018 to the following effect :-

"We grant liberty to the petitioner to make a representation before the respondent no. 1 within two weeks from today along with a certified copy of this order, raising the issue with regard to the limitation only as provided under Section 6.15 of the Electricity Supply Code, 2005. In the event, if such representation is made within the aforesaid period, the first respondent shall make an endeavour to address the said issue in accordance with law expeditiously, preferably within a period of two months thereafter."

With the aforesaid observation/direction, the review application stands **disposed of**.

Order Date :- 10.5.2019

VR